

25CV00254 C Norman Borgatello vs Nadia Bernardi

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-14

Motion: Motion: Admissions

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Tentative Ruling: C Norman Borgatello vs Nadia Bernardi

Case Number

25CV00254

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/14/2026 - 10:00

Nature of Proceedings

Motion: Admissions

Tentative Ruling

Plaintiff C. Norman Borgatello's motion for order that requests for admissions be deemed admitted is denied as moot. Monetary sanctions are imposed against defendant Nadia Bernardi, and in favor of plaintiff C. Norman Borgatello, in the reduced amount of \$310.00, payable to counsel for plaintiff no later than September 25, 2026.

Background:

This action commenced on January 14, 2025, by the filing of the complaint by plaintiff C. Norman Borgatello against defendant Nadia Bernardi for Declaratory Relief on Written Contract.

As alleged in the complaint:

On August 7, 2018, plaintiff and defendant entered into a written contract regarding real property located at 920 Flora Vista Drive, Santa Barbara (the "agreement"). (Compl., ¶ 2 & Exh. A.)

Plaintiff has performed all required obligations under the agreement including the transfer of \$600,000.00 in cash to defendant. (Compl., ¶ 3.)

Defendant agreed to maintain title to the property free of liens, but on November 9, 2018, defendant obtained a loan secured by a deed of trust against the property for \$70,000.00 and has refinanced said "Mortgage" multiple times since that date and now has an outstanding balance of approximately \$600,000.00. (Compl., ¶¶ 4, 5.)

The agreement provides that, at any time, plaintiff can request that defendant record a grant deed in favor of plaintiff as to 50 percent of the property. (Compl., ¶ 6.)

The agreement further provides that after three years from the date of the agreement, either party may demand the sale of the property, and all parties must cooperate in the sale. (Compl., ¶ 7.) More than three years have elapsed since the signing of the agreement. (Ibid.)

On November 20, 2024, plaintiff sent defendant a letter asking defendant to promptly record a grant deed in his plaintiff's favor and to cooperate in listing the property for sale. (Compl., ¶ 8.) Defendant has not responded to the letter. (Compl., ¶ 9.)

On March 19, 2025, defendant answered the complaint with a general denial and 16 affirmative defenses.

On July 17, 2026, Intervenor Compass Alternative Investments LLC, Gabriella Bat-Aviv, trustee of the Gabriella Bat-Aviv Revocable Trust dated June 10, 1996, and JMG Retirement Plan filed a complaint in intervention for declaratory relief, equitable lien, and equitable subrogation.

On February 23, 2026, plaintiff served defendant with requests for admission, set two ("RFAs"). (Walsh decl., ¶ 4 & Exh. A.) On February 27, 2026, plaintiff's counsel received a request from defendant for an extension of time to respond, and plaintiff's counsel granted a two-week extension. (Walsh decl., ¶ 5 & Exh. B.) Plaintiff's counsel has not received responses as of the filing of the present motion. (Walsh decl., ¶ 6.)

Plaintiff now moves to have the RFAs deemed admitted.

Defendant opposes the motion, arguing that she did not intentionally disregard discovery and the failure to provide responses has now been cured.

Plaintiff did not file any reply to the opposition, resulting in the reasonable inference that defendant did in fact provide untimely responses.

Analysis:

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically

stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery. . .” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

RFAs “differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof.” (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735.)

Code of Civil Procedure, section 2033.010 provides, in pertinent part: “Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.”

“The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. Each response shall answer the substance of the requested admission, or set forth an objection to the particular request.” (Code Civ. Proc. § 2033.210, subds. (a-b).

“If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

“(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

“(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

“(2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

“(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

“(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280.)

Defendant declares: “I have now carefully prepared verified responses to every request. I am filing and serving those responses before the August 14, 2026 hearing.” (Bernardi decl., ¶ 11.)

Because plaintiff has not filed anything in reply to the opposition, the reasonable inference is that responses have now been served. Thus, with the exception of monetary sanctions, the motion is moot.

As set forth above, sanctions are mandatory.

Plaintiff seeks \$810.00 in monetary sanctions associated with bringing the present motion, based on 3 hours of time at a rate of \$250.00 per hour plus a \$60.00 filing fee. This was not a complex motion, and the court will grant monetary sanctions of \$310.00 based on one hour of time and the filing fee.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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